

OPERATING AGREEMENT OF 213-215 HALSTEAD AVENUE HOLDINGS LLC

A New York Limited Liability Company

Dated: April ____, 2026

THIS DOCUMENT SHOULD BE REVIEWED BY LEGAL COUNSEL BEFORE EXECUTION

ARTICLE I — FORMATION AND NAME

1.1 Formation. The Members hereby form a Limited Liability Company ("Company") pursuant to the New York Limited Liability Company Law ("NY LLCL"). The Articles of Organization were filed with the New York Secretary of State on _____, 2026.

1.2 Name. The name of the Company is **213-215 Halstead Avenue Holdings LLC**.

1.3 Principal Office. The principal office of the Company shall be located at 1 Bradford Road, Scarsdale, NY 10583 or such other place as the Managing Member may designate from time to time.

1.4 Registered Agent. [TO BE DESIGNATED — registered agent name and address in New York]

1.5 Purpose. The purpose of the Company is to acquire, own, hold, operate, manage, lease, improve, finance, refinance, and dispose of the real property located at 213-215 Halstead Avenue, Mamaroneck, New York (the "Property"), and to engage in any and all lawful activities related thereto.

1.6 Term. The Company shall continue in existence until dissolved in accordance with this Agreement or by operation of law.

ARTICLE II — MEMBERS AND CAPITAL CONTRIBUTIONS

2.1 Members. The Members of the Company, their respective Membership Interest Percentages, and their Capital Contributions are as follows:

Member	Membership %	Capital Contribution
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David A. Goldoff	**51.00%**	**\$171,000**
1 Bradford Rd, Scarsdale NY 10583		(\$50,000 cash deposit +
New York, NY 10022		\$56,000 cash deposit +
\$65,000 Prudential Life Ins.)		
Columbia Private Trust	**26.44%**	**\$130,222**
FBO Anna C Goldoff Traditional IRA		
Account No. 080000012269		
PO Box 981012, Boston, MA 02298		

	Columbia Private Trust		**22.56%**
	FBO Beth Gardner-Goldoff		
	Inherited Traditional IRA		
	Account No. 100100118974		
	PO Box 981012, Boston, MA 02298		
	IRA Members Combined		**49.00%**
	TOTAL		**100.00%**

****Use of Funds:****

- Property Purchase Price: \$1,060,000
- Equity (35%): \$371,000
- Debt (65%): \$689,000 (via institutional lender)
- Reserves / Closing Costs / Ancillary: ~\$55,930

****2.2 Additional Contributions.**** No Member shall be required to make additional capital contributions without the unanimous written consent of all Members. If additional capital is required and a Member elects not to contribute, such Member's Membership Interest may be diluted proportionally.

****2.3 No Interest on Capital.**** No Member shall receive interest on any capital contribution.

****2.4 Return of Capital.**** No Member has the right to demand or receive the return of any capital contribution except upon dissolution of the Company, sale or refinancing of the Property, or as otherwise provided herein.

****2.5 Capital Accounts.**** A separate capital account shall be maintained for each Member in accordance with Section 704 of the Internal Revenue Code and the Treasury Regulations promulgated thereunder.

ARTICLE III - MANAGEMENT

****3.1 Managing Member.**** David A. Goldoff shall serve as the Managing Member of the Company and shall have full authority to manage the day-to-day business and affairs of the Company, including but not limited to:

(a) Negotiating, executing, and delivering the purchase agreement, deed, and all closing documents for the Property;

(b) Obtaining, negotiating, and executing mortgage financing for the acquisition of the Property;

(c) Engaging attorneys, accountants, engineers, architects, contractors, property managers, and other professionals as necessary;

(d) Managing the Property directly or engaging a property management company (including Camelot Property Management Services Corp or its affiliates);

(e) Executing leases, rental agreements, and collecting rents and other income from the Property;

(f) Paying all expenses, taxes, insurance premiums, mortgage payments, and other obligations of the Company;

(g) Opening and managing bank accounts in the name of the Company;

(h) Making distributions to Members in accordance with this Agreement;

(i) Filing all tax returns and making all tax elections on behalf of the Company;

(j) Executing any and all documents, instruments, and agreements on behalf of the Company in furtherance of the Company's purpose.

****3.2 Major Decisions.**** The following actions shall require the prior written consent of Members holding at least seventy-five percent (75%) of the Membership Interests:

(a) Sale, exchange, or other disposition of the Property or all or substantially all of the Company's assets;

(b) Refinancing of any mortgage or indebtedness secured by the Property;

(c) Incurring any new indebtedness or guarantees exceeding \$50,000 in the aggregate;

(d) Admission of new Members to the Company;

(e) Amendment of this Operating Agreement;

(f) Voluntary dissolution of the Company;

(g) Any merger, consolidation, or conversion of the Company;

(h) Any transaction between the Company and the Managing Member or any affiliate of the Managing Member (other than property management services at market rates).

****3.3 Compensation.**** The Managing Member shall not receive a separate management fee for services rendered to the Company unless approved by Members holding a majority of the Membership Interests. The Managing Member shall be entitled to reimbursement for all reasonable out-of-pocket expenses incurred on behalf of the Company. If Camelot Property Management Services Corp or its affiliates is engaged to manage the Property, such engagement shall be at market rates and disclosed to all Members.

****3.4 Exculpation.**** The Managing Member shall not be liable to the Company or any Member for any act or omission taken in good faith and reasonably believed to be in the best interest of the Company, except in the case of fraud, willful misconduct, or gross negligence.

****3.5 Indemnification.**** The Company shall indemnify the Managing Member against any and all claims, losses, damages, liabilities, and expenses (including reasonable attorneys' fees) arising out of or related to the management of the Company, except to the extent caused by fraud, willful misconduct, or gross negligence.

ARTICLE IV – DISTRIBUTIONS AND ALLOCATIONS

****4.1 Distributions.**** Net Cash Flow (as defined below) shall be distributed to the Members in proportion to their respective Membership Interest Percentages at such times and in such amounts as determined by the Managing Member, but no less frequently than quarterly (to the extent cash is available after payment of all Company obligations, reserves, and capital expenditure requirements).

****4.2 Net Cash Flow Defined.**** "Net Cash Flow" means gross revenues from the Property (including rents, fees, and other income) less: (a) all operating expenses; (b) all debt service payments (principal and interest); (c) reasonable reserves as determined by the Managing Member; and (d) capital expenditures approved by the Managing Member.

****4.3 Allocation of Profits and Losses.**** Net profits and net losses of the Company for each fiscal year shall be allocated to the Members in accordance with their respective Membership Interest Percentages.

****4.4 Tax Allocations.**** All items of income, gain, loss, deduction, and credit shall be allocated among the Members for federal, state, and local income tax purposes in a manner consistent with Section 704 of the Internal Revenue Code and the Treasury Regulations thereunder.

****4.5 Tax Matters Partner.**** David A. Goldoff shall serve as the "Partnership Representative" (as defined in Section 6223 of the Internal Revenue Code) for all tax matters relating to the Company.

****4.6 Distributions Upon Liquidation.**** Upon the dissolution and winding up of the Company, distributions shall be made in the following order: (a) payment of Company debts and obligations to creditors; (b) establishment of reserves for contingent liabilities; (c) return of capital contributions to Members; (d) distribution of remaining assets to Members in proportion to their Membership Interest Percentages.

ARTICLE V – SELF-DIRECTED IRA PROVISIONS

****5.1 IRA Members.**** The parties acknowledge that certain Members are investing through Self-Directed Individual Retirement Accounts ("SDIRAs") custodied by Columbia Private Trust (the "Custodian"). The IRA Members are:

- Columbia Private Trust FBO Anna C Goldoff Traditional IRA (Account 080000012269)
- Columbia Private Trust FBO Beth Gardner-Goldoff Inherited Traditional IRA (Account 100100118974)

The following provisions apply to all IRA Members and shall supersede any conflicting provision of this Agreement to the extent necessary to comply with applicable tax law:

****5.2 Prohibited Transactions.**** No Member shall cause or permit the Company to engage in any transaction that would constitute a "prohibited transaction" under Section 4975 of the Internal Revenue Code or Section 406 of ERISA with respect to any IRA Member's account. Without limiting the foregoing:

(a) No IRA Member, nor any "disqualified person" (as defined in IRC Section 4975(e)(2)) with respect to such IRA, shall provide services to the Company, lend money to or borrow money from the Company, or furnish goods or facilities to the Company.

(b) The Managing Member shall use commercially reasonable efforts to ensure that no Company transaction constitutes a direct or indirect prohibited transaction with respect to any IRA Member.

****5.3 No Personal Benefit.**** No IRA Member (nor any disqualified person with respect to such IRA) shall receive any direct or indirect personal benefit from the Company's assets or activities, other than distributions made to the IRA custodial account in accordance with this Agreement.

****5.4 Custodian as Legal Member.**** Columbia Private Trust, as custodian, is the legal Member of the Company with respect to each IRA Member's interest. Columbia Private Trust must sign all documents on behalf of the IRA Members, including this Operating Agreement, the deed, the mortgage (if applicable), any amendments hereto, and all other documents requiring a Member's signature. The IRA account holders (Anna C Goldoff and Beth Gardner-Goldoff) may sign as "Read and Approved" in an advisory capacity, but Columbia Private Trust is the record Member for all legal purposes.

****5.5 UBTI Disclosure.**** If the Company incurs debt-financed income (e.g., via a mortgage on the Property), each IRA Member acknowledges that their allocable share of such income may be subject to Unrelated Business Taxable Income ("UBTI") under IRC Sections 511-514. The Company shall provide each IRA Member (and the Custodian) with all necessary Schedule K-1 information and supporting documentation for the filing of IRS Form 990-T on a timely basis.

****5.6 Expenses.**** All expenses, fees, and obligations attributable to an IRA Member's interest in the Company (including but not limited to the Custodian's fees, tax preparation fees, and any UBTI tax payments) shall be paid exclusively from the respective IRA Member's Columbia Private Trust custodial account. Under no circumstances shall such expenses be paid from the personal funds of the IRA account holder.

****5.7 Distributions to IRA Accounts.**** All distributions attributable to an IRA Member's interest shall be made payable to "Columbia Private Trust FBO [Account Holder Name] IRA" and deposited directly into the applicable custodial account. No distributions shall be made directly to the IRA account holder personally.

ARTICLE VI – TRANSFERS AND WITHDRAWAL

****6.1 Restrictions on Transfer.**** No Member may sell, assign, transfer, pledge, encumber, or otherwise dispose of all or any portion of their Membership Interest without the prior written consent of the Managing Member and compliance with all applicable federal and state securities laws.

****6.2 Right of First Refusal.**** In the event a Member desires to transfer their Membership Interest to a third party, the remaining Members shall have a right of first refusal to purchase such interest at the offered price and on the same terms and conditions, exercisable within thirty (30) days of written notice.

****6.3 IRA Transfer Requirements.**** Any transfer of an IRA Member's interest must comply with all applicable IRS regulations governing self-directed IRAs. Columbia Private Trust must approve and execute any transfer on behalf of an IRA Member.

ARTICLE VII – DISSOLUTION

****7.1 Events of Dissolution.**** The Company shall be dissolved upon the first to occur of:

(a) The written consent of Members holding at least seventy-five percent (75%) of the Membership Interests;

(b) The sale or other disposition of all or substantially all of the Company's assets (including the Property);

(c) Any event required by the NY LLCL or other applicable law.

****7.2 Winding Up.**** Upon dissolution, the Managing Member (or a liquidating agent appointed by the Members) shall wind up the Company's affairs, liquidate assets, pay debts and obligations, establish reserves for contingent liabilities, and distribute remaining proceeds to Members in accordance with Article IV, Section 4.6 of this Agreement.

****7.3 Articles of Dissolution.**** Upon completion of winding up, the Managing Member shall file Articles of Dissolution with the New York Secretary of State.

ARTICLE VIII - MISCELLANEOUS

8.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to conflict of laws principles.

8.2 Entire Agreement. This Agreement constitutes the entire agreement among the Members with respect to the Company and supersedes all prior agreements, understandings, negotiations, and representations.

8.3 Amendments. This Agreement may be amended only by the written consent of Members holding at least seventy-five percent (75%) of the Membership Interests.

8.4 Severability. If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions shall remain in full force and effect.

8.5 Binding Effect. This Agreement shall be binding upon and inure to the benefit of the Members and their respective heirs, executors, administrators, legal representatives, successors, and permitted assigns.

8.6 Notices. All notices under this Agreement shall be in writing and delivered by hand, overnight courier, or email to the addresses set forth in Article II or such other address as a Member may designate in writing.

8.7 Dispute Resolution. Any dispute arising under this Agreement shall be resolved by arbitration in New York County, New York, in accordance with the rules of the American Arbitration Association.

8.8 Counterparts. This Agreement may be executed in counterparts, each of which shall constitute an original, and all of which together shall constitute one agreement.

SIGNATURES

MANAGING MEMBER:

David A. Goldoff
51.00% Membership Interest
477 Madison Avenue, 6th Floor, New York, NY 10022

Date: _____

IRA MEMBERS (Signed by Columbia Private Trust as Custodian):

Columbia Private Trust
FBO Anna C Goldoff Traditional IRA
Account No. 080000012269
26.44% Membership Interest

Date: _____

Columbia Private Trust
FBO Beth Gardner-Goldoff Inherited Traditional IRA
Account No. 100100118974
22.56% Membership Interest

Date: _____

READ AND APPROVED BY IRA ACCOUNT HOLDERS:

Anna C Goldoff

Date: _____

Beth Gardner-Goldoff

Date: _____

EXHIBIT A - PROPERTY DESCRIPTION

Property Address: 213-215 Halstead Avenue, Mamaroneck, New York
Tax Parcel: [TO BE FILLED IN FROM DEED/SURVEY]
Legal Description: [TO BE INSERTED FROM TITLE REPORT]

EXHIBIT B - CAPITAL CONTRIBUTION SCHEDULE

Member	Contribution	Source	Membership %
David A. Goldoff	\$50,000	Cash deposit (paid)	51.00%
David A. Goldoff	\$56,000	Cash deposit - Beth personal (paid)	(included above)
David A. Goldoff	\$65,000	Joint Prudential Life Insurance	(included above)
Columbia PT FBO Anna C Goldoff Trad IRA	\$130,222	IRA Available Cash	26.44%
Columbia PT FBO Beth Gardner-Goldoff Inh Trad IRA	\$104,708	IRA Available Cash	22.56%
TOTAL	**\$405,930**		**100.00%**

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